

**Memo.No.747/Courts.E/90-3, Home (Courts.E) Dept., dt.23.10.1990: Sanction of prosecution should be a speaking order.**

**Subject Heading : Sanction of prosecution - should be speaking order, showing application of mind**

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An instance has come to the notice of Government wherein the sentence imposed by a Lower Court was set aside by High Court for the reason that sanction for the prosecution granted is not in accordance with the Law.

2. According to the latest Law laid down by the Supreme Court the authority sanctioning prosecution is not only required to apply its mind to the facts of the case but it should satisfy itself that there is prima facie case and should also record its reasons for launching prosecutions and also specify that it is necessary in the public interest.

3. In view of the above position, the heads of Departments are requested to ensure that a speaking order is issued when sanction for prosecution is being given.